



THE SHAHEED ZULFIQAR ALI BHUTTO MEDICAL UNIVERSITY, ISLAMABAD, ACT, 2013



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SCHEDULE

The Shaheed Zulfiqar Ali Bhutto Medical University, Islamabad, 2013

ACT No. XV OF 2013

[20th March, 2013]

An Act to establish Shaheed Zulfiqar Ali Bhutto Medical University, Islamabad

WHEREAS it is expedient to establish and incorporate the Shaheed Zulfiqar Ali Bhutto Medical University at Islamabad;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the Shaheed Zulfiqar Ali Bhutto Medical University, Islamabad, Act, 2013.

(2) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

- (a) “Academic Council” means the Academic Council specified in section 26;
- (b) “Authority” includes one or more authorities of the University specified in section 20;
- (c) “Chairman” means head of a teaching department;
- (d) “Chancellor” means the Chancellor specified in section 9;
- (e) “Dean” means the Chairman of the Board of Faculty specified in the Schedule;
- (f) “Director” means the Director of an institute;
- (g) “Faculty” means a faculty specified in the Schedule;
- ¹[(ga) “Federal Medical and Dental College” or “FMDC” means the Federal Medical and Dental College of the Federal Government affiliated to the University;]
- (h) “Government” means the Federal Government;
- ¹[(i) “hospital” means a teaching hospital as notified by the Federal Government or an authority authorized by it in this behalf;]
- (j) “prescribed” means prescribed by rules made under this Act;
- (k) “Pro-Vice Chancellor” means the Pro-Vice-Chancellor appointed under section 14;

¹ Ins. and subs. by Act, 2018 (III of 2018), s. 2.

- (l) “registered graduate” means a graduate of the University who either resides within its jurisdiction or otherwise but his name is entered in the register maintained for the purpose;
- (m) “regulations” means the regulations made under section 31;
- (n) “constituent college or institution” means a college, institute, department or academy maintained and administered by the University;
- (o) “affiliated college” means an educational institution affiliated to the University but not maintained or administered by it;
- (p) “college” means a constituent college or affiliated college;
- (q) “rules” means the rules made under section 30;
- (r) “Schedule” means Schedule to this Act;
- (s) “Senate” means the Senate specified in section 21;
- (t) “Syndicate” means the Syndicate specified in section 24;
- (u) “Teacher” includes a Professor, Associate Professor, Assistant Professor, senior registrar and Demonstrator engaged whole-time by the University, college, institute or the institution and such other persons as may be declared as teachers by the regulations;
- (v) “Teaching department” means a teaching department maintained and administered by the University;
- ¹[(va) “University” means the Shaheed Zulfiqar Ali Bhutto Medical University constituted under section 3;]
- (w) “Vice Chancellor” means the Vice-Chancellor appointed under section 12.

CHAPTER II

THE UNIVERSITY

3. Incorporation.—(1) The Shaheed Zulfiqar Ali Bhutto Medical University, Islamabad shall be constituted in accordance with the provisions of this Act.

(2) The University shall consist of the Chancellor, the Vice Chancellor, the Pro-Vice-Chancellor and members of the Senate, the Syndicate, and the Academic Council.

¹ Ins. by Act, 2018 (III of 2018), s.2.

(3) The University shall be an autonomous, body corporate by the name of Shaheed Zulfiqar Ali Bhutto Medical University and shall have a perpetual succession and a common seal and may sue or be sued by the said name.

(4) The University shall be competent to acquire and hold property both moveable and immovable and lease, sell or otherwise transfer any moveable or immovable property which vests in or have been acquired by it.

¹[(5) The Pakistan Institute of Medical Sciences Islamabad (PIMS) shall be a teaching hospital of the University and it shall be headed by an Executive Director appointed by the Prime Minister in the manner as may be prescribed under the Civil Servant Act, 1973 (LXXI of 1973) and the rules made thereunder.]

(6) ¹[* * * * *]

(7) ¹[* * * * *]

4. Functions.— The University shall perform the following functions, namely:—

- (a) to provide for instruction in such teaching subjects, disciplines or branches of learning at graduate or post-graduate level as it may deem fit and to make provision for research, advancement and dissemination of knowledge in such manner as it may determine;
- (b) to prescribe or identify courses of studies to be conducted by it and the faculties;
- (c) to hold examinations and to award and confer degrees, diplomas, certificates and other academic distinctions to and on persons who have been admitted to and have passed its examinations;
- (d) to confer honorary degrees or other distinctions on persons approved therefore;
- (e) to provide for persons having received education or training in other institutions, such instructions as it may determine, and to award degrees, diplomas or certificates to such persons;
- (f) to confer degrees on persons have carried on independent research under certain conditions;
- (g) to inspect constituent or affiliated colleges or institutions;
- (h) for the purpose of admission to the University, recognize the examination passed and the periods of study spent by students at other universities and places of learning as equivalent to such examinations and periods of study in the University, and to withdraw such recognition in appropriate cases after giving notice to the concerned student;

¹ Subs. and Omitted by Act, 2018 (III of 2018), s. 3.

- (i) to co-ordinate with other universities and public authorities in such manner, and for such purposes as it may determine;
- (j) to create posts of Professors, Associate Professors, Assistant Professors, Senior Registrars and Demonstrators and other posts for research, publication, extension, administration and other related purposes and to appoint persons thereto;
- (k) to confer or award fellowships, scholarships, bursaries, medals and prizes as may be prescribed;
- (l) to establish teaching departments, schools, colleges, faculties, institutes, museums and centers of excellence including area study center and other centers of learning for the development of teaching and research and to make such arrangements for their maintenance, management and administration as may be prescribed;
- (m) to arrange, administer and maintain hostels for students of the University;
- (n) to promote and organize recreational and extra-curricular activities for physical and mental growth, health and fitness of the students;
- (o) to enforce and maintain discipline amongst the students of the University;
- (p) to demand and receive such fees and other charges as may be prescribed;
- (q) to make provisions for research and advisory services and, in relation thereto, enter into arrangements with other institutions or with public bodies as may be deemed necessary;
- (r) to make, amend, alter, vary or rescind agreements, contracts and leases;
- (s) to receive grants, bequests, trusts, gifts, donations, endowments and other contributions made to the University and to make investment thereof, if any, with the permission of the Senate;
- (t) to engage and provide for the printing and publications of research papers and other works for the advancement of medical education; and
- (u) to do all such other acts and things incidental to the aforesaid, as may be necessary for the University as a custodian of medical education, learning and research.

5. Jurisdiction.—(1) The University shall exercise the powers conferred on it by or under this Act within Islamabad Capital Territory in respect of such medical colleges and institutions in public or private sector as may apply to the University for exercise of its process:

Provided that Government may, in consultation with the University, by general or special

orders, modify the extent and scope of aforesaid powers of the University with regard to the territorial limits, colleges and institutions.

(2) All medical colleges, and health institutions whether in public or private sector excluding the constituent college of a university, located within the Islamabad Capital Territory, whether affiliated with any other university, examination board or medical faculty, notwithstanding anything contained in any other law for the time being in force, shall affiliate with the university within such period and on such condition as may be prescribed.

(3) The Faculty of Medicine, Quaid-i-Azam University shall be transferred to Shaheed Zulfiqar Ali Bhutto Medical University, and all students thereafter will be transferred in one year time.

¹[(3A) All the teaching posts and teaching faculty of the PIMS existing on commencement of the Shaheed Zulfiqar Ali Bhutto Medical University, Islamabad (Amendment) Act, 2018 shall, subject to their option under sub-section(3B), stand transferred to the Federal Medical and Dental College.

(3B) The incumbents of the teaching posts to be transferred under sub-section (3A) may, within a period of not exceeding sixty days, exercise a one-time irrevocable option either to become employees of the Federal Medical and Dental College or, as the case may be, continue to be employees of the PIMS:

Provided that—

- (a) on exercise of such option the opted terms and conditions of their service shall not be less favourable than their terms and conditions existing before exercising the option;
- (b) no person who stands transferred to the Federal Medical and Dental College by virtue of sub-section (3A) shall, notwithstanding anything contained in any law, or any other instrument, for the time being in force, be entitled to any compensation because of such transfer; and
- (c) incumbents of the teaching posts who do not exercise any option within the said sixty days shall be deemed to have opted to continue to be employees of the PIMS.]

(4) The University may admit to its privileges, under prescribed conditions and with the consent of such university and approval of the Government, the colleges of medical and health sciences, within the territorial limits of another university, whether inside or outside Pakistan.

(5) An increase in any fee or charge that is in excess of ten per cent per annum on an annualized basis from the last such increase may not be made except in special circumstances, and only with the approval of the Chancellor.

(6) The University shall institute financial aid programmes for students in need on merit basis to the extent considered feasible by the Senate subject to the resources available.

¹ Ins. by Act, 2018 (III of 2018), s.4.

6. University open to all persons.—The University shall be open to all persons and no person shall be denied admission or privileges of the University on the basis of sex, caste, color, creed, class, race, religion or status.

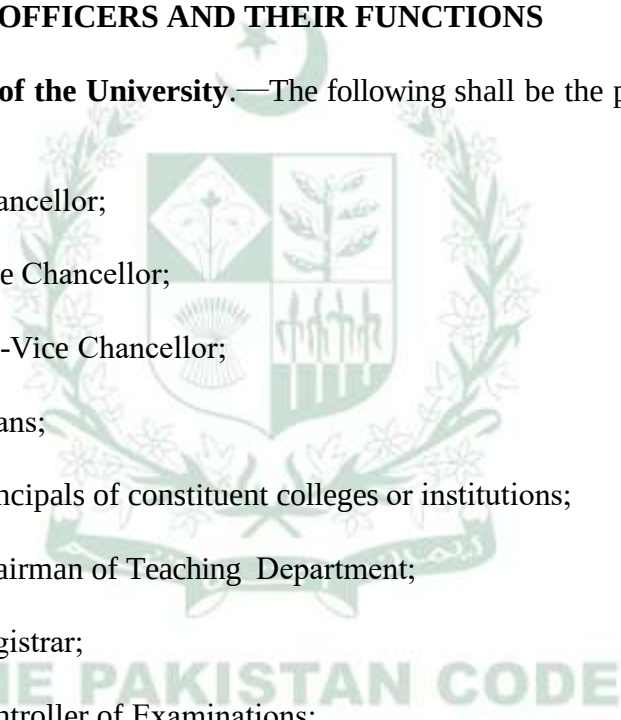
7. Teaching.—(1) All recognized teaching in various subjects, disciplines or courses shall be conducted by the University, in the manner specified under the regulations and may include lectures, tutorials, discussions, seminars, demonstrations as well as practical work in the laboratories, hospitals, workshops and community and other methods of instruction.

(2) The courses and the curricula shall be such as may be prescribed.

CHAPTER III

OFFICERS AND THEIR FUNCTIONS

8. Principal officers of the University.—The following shall be the principal officers of the University, namely:—

- 
- (a) the Chancellor;
 - (b) the Vice Chancellor;
 - (c) the Pro-Vice Chancellor;
 - (d) the Deans;
 - (e) the Principals of constituent colleges or institutions;
 - (f) the Chairman of Teaching Department;
 - (g) the Registrar;
 - (h) the Controller of Examinations;
 - (i) the Treasurer; and
 - (j) such other persons as may be prescribed.

9. Chancellor.—(1) The President of Islamic Republic of Pakistan shall be the Chancellor of the university and Chairperson of Senate.

(2) The Chancellor or, in his absence, the Pro-Chancellor or in his absence the nominee of the Chancellor shall preside at the convocation of the University and the meetings of the Senate.

(3) Where the Chancellor is satisfied that any order or proceedings of any authority is not in accordance with the provisions of this Act, the rules or the regulations made, he may thereof, after calling upon such authority to show cause, by order in writing, modify or set aside such order or proceedings, as the case may be.

(4) Any proposal to confer an honorary degree shall be subject to approval of the Chancellor.

(5) The Chancellor shall be competent to approve the rules as may be made and submitted to him by the Senate whereupon he may either approve without modifications or refer them back to the Senate for re-consideration.

(6) The Chancellor may terminate any person from the membership of any authority if he is satisfied that such person:—

- (a) has become of unsound mind; or
- (b) has been incapacitated to function as a member of such authority; or
- (c) has been convicted of charges of corruption or moral turpitude.

10. Revision of powers of the Chancellor.—The Chancellor may, on his own motion or otherwise, call for and examine the record of any proceedings in which an order has been passed by any authority for the purpose of satisfying himself as to the correctness, legality or propriety of any finding or order and may pass such orders thereof, as he may deem fit:

Provided that no order under this section shall be passed unless the person to be affected thereby is afforded an opportunity of being heard.

11. Inspection and inquiry.—(1) The Chancellor may cause an inspection or inquiry to be made in respect of any matter connected with the University and shall, from time to time, appoint such person or persons as he may deem fit, for the purposes of conducting inquiry or carrying out inspection of—

- (a) the University, its building, laboratories, libraries, museums, workshops and equipment;
- (b) any institution, college, hospital or hostel maintained by the University;
- (c) the teaching and other work conducted by the University; and
- (d) the conduct of examinations held by the University:

Provided that the Chancellor shall, in every such case, intimate the Syndicate of his intention to cause an inspection or inquiry to be made.

(2) The Chancellor shall forward to the Syndicate the report of such inspection or inquiry and shall, after ascertaining the views of the Syndicate thereon, communicate to it the action to be taken.

(3) The Syndicate shall communicate to the Chancellor such action, if any, as has been taken or may be proposed to be taken upon the results of the inspection or inquiry and such communication shall be submitted to the Chancellor within such time as may be required or specified by him.

(4) Where the Syndicate does not, within a reasonable time, take action to the satisfaction of the Chancellor, the Chancellor may, after considering any explanation furnished or representation made by the Syndicate, issue directions to the Vice-Chancellor as he thinks fit and the Vice-Chancellor shall other comply such directions or cause the compliance thereof.

12. Vice Chancellor.—¹[(1) The Vice-Chancellor shall be appointed by the Chancellor in accordance with the provisions of this Act.]

(2) The Vice-Chancellor shall have qualification prescribed by Pakistan Medical and Dental Council at Level I and Level III MS or MD or FCPS or equivalent with fifteen years teaching experience and must have produced ten research papers in Pakistan Medical and Dental Council or Higher Education Commission recognized journals.

(3) The Government shall constitute, for a term of two years, a Search Committee consisting of not less than three and not more than five members for making recommendations for appointment of the Vice-Chancellor.

(4) The Search Committee shall follow the HEC's procedure for selection of the panel for the post of the Vice-Chancellor, and will be notified by the Federal Government.

(5) The Search Committee shall recommend to the Federal Government, a panel of three persons who, in its opinion, are suitable for appointment as the Vice-Chancellor.

(6) The Chancellor shall appoint the Vice-Chancellor for each term of four years but he shall serve during the pleasure of the Chancellor.

(7) The Government shall determine the terms and conditions of service of the Vice-Chancellor.

(8) The incumbent Vice-Chancellor shall not be allowed any extension in his tenure but subject to eligibility he may again compete for the post of the Vice-Chancellor accordance with the procedure prescribed by or under this section.

(9) If the office of the Vice-Chancellor is vacant or the Vice-Chancellor is absent or is unable to perform the functions of the Vice-Chancellor owing to any cause, the Pro-Vice-Chancellor shall perform the functions of the Vice-Chancellor but, if at any time, the office of Pro-Vice-Chancellor is also vacant or the Pro-Vice-Chancellor is absent or is unable to perform the functions of the Vice-Chancellor owing to any cause, the Chancellor shall make such temporary arrangements for the performance of the duties of the Vice-Chancellor as he may deem fit, for not more than a period of three months.

13. Powers and functions of Vice-Chancellor.— (1) Subject to sections 22 and 24, the Vice-Chancellor shall be the chief executive of the University and exercise administrative control over all its officers, teachers and employees; and shall ensure the enforcement of the provisions of this Act, the rules and the regulations made thereunder.

¹ Subs. by Act, 2018 (III of 2018), s. 5.

(2) The Vice-Chancellor may teach and undertake clinical assignments in the University and its attached hospital for academic purposes but shall not undertake any private practice inside or outside the premises of the University.

(3) The Vice Chancellor may—

- (a) Place on deputation the services of any officer, teacher or any other employee of the University at the disposal of the Federal Government or such other university or institution, for such period and on such terms and conditions as may be agreed with the borrowing agency:

Provided that such terms and conditions shall not be less favorable than those admissible to him immediately before his transfer on deputation; and

- (b) make appointment to any post in the University, whether as a teacher or otherwise from persons in the civil government service of Pakistan or from officers, teachers or other employees of any other public sector university or institution as recommended by the Government:

(4) Subject to such conditions as may be prescribed, the Vice-Chancellor may, in an emergency, take an action which is not otherwise in the competence of the Vice-Chancellor but is in the competence of any other Authority.

(5) The Vice-Chancellor shall, within seven days of taking an action under sub-section (4), submit a report, of the action taken to the members of the Syndicate; and, the Syndicate shall, within forty five days of such an action of the Vice-Chancellor, pass such orders as the Syndicate deems appropriate.

(6) the Vice-Chancellor shall perform the following functions:—

- (a) preside at the meetings of the authorities or bodies except the Senate notwithstanding any other nomination by the Chancellor;
- (b) fill temporary posts for a period not exceeding one year;
- (c) sanction all expenditure provided for in the approved budget, and to re-appropriate funds within the same major head of expenditure;
- (d) sanction the re-appropriation of an amount not exceeding five hundred thousand rupees for an unforeseen but permissible item not provided for in the budget, and report it to the Syndicate at the next meeting;
- (e) appoint experts to set question papers and examiners for all examinations of the University after receiving panels of names from the relevant authorities;
- (f) make such arrangements for the security of examination papers, marks and results as he may consider necessary;

- (g) direct teachers, officers and other employees of the University to take up such assignments in connection with teaching, research, examinations, administration and such other activities in the University as he may, in its interest, consider necessary in consultation with the Dean concerned;
- (h) delegate, subject to such conditions, if any, as may be prescribed, any of his powers under this Act, to any officer of the University;
- (i) appoint employees up to the scale of pay equivalent to BPS 18:

Provided that all appointments equivalent to BPS 17 and BPS 18 shall be made on the recommendations of the Selection Board; and

- (j) suspend, expel or rusticate students of the University on the recommendations of the Discipline Committee.

14. Pro-Vice Chancellor.—(1) The Vice-Chancellor shall nominate the Pro-Vice Chancellor of the University, from amongst a panel of three faculty members of the University, for a term of three years.

(2) The Pro-Vice-Chancellor shall perform such functions as may be assigned to him under this Act, statutes or regulation made thereunder.

(3) The Syndicate or the Vice-Chancellor may assign any other functions to the Pro-Vice-Chancellor in addition to his duties as specialist.

15. Registrar.—(1) The Registrar shall be appointed by the Vice-Chancellor on the recommendations of Syndicate on such terms and conditions as may be prescribed in the statutes.

(2) the Registrar shall—

- (a) be the custodian of the common seal and the academic records of the University;
- (b) maintain a register of registered graduates in the prescribed manner;
- (c) initiate and process nomination of members to the various authorities in the manner as may be prescribed; and
- (d) perform such other duties as may be prescribed.

16. Controller of Examinations.—(1) The Controller of Examinations shall be appointed by the Vice-Chancellor on recommendations of syndicate on such terms and conditions as may be prescribed in the statutes.

(2) The Controller of Examinations shall be responsible for the conduct of examinations and all matters connected therewith including formation of multiple choice questions (MCQs) bank, maintenance of secrecy of examination, tabulation of results and perform such other duties as may be prescribed.

17. Treasurer.—(1) The Treasurer shall be a whole-time officer and shall be appointed by the Vice-Chancellor on the recommendations of the Syndicate, on such terms and conditions as may be prescribed in the statutes.

(2) the Treasurer shall be responsible to—

- (a) manage property, finances and investments of the University;
- (b) prepare annual and revised budget estimates of the University and present them to the Finance and Planning Committee, the Syndicate and the Senate;
- (c) ensure that the funds of the University are utilized for the purposes for which they are provided; and
- (d) perform such other duties as may be prescribed.

18. Auditor.—The Auditor shall be taken from the office of the Auditor General of Pakistan being in BPS 20 on deputation basis on such terms and conditions as determined by Syndicate.

19. Other officers and staff members.—(1) Subject to the provisions of this Act, the University may employ such officers and employees in its service as may be necessary for the efficient performance of its functions in such manner and on such terms and conditions as may be prescribed.

¹[(2) Until the terms and conditions of service of the employees of the University are prescribed under this Act, all service rules, regulations and instructions as are applicable to civil servants of respective pay scales and status governed by the Civil Servants Act, 1973 (LXXI of 1973) shall apply to the employees of the University in so far as they are not inconsistent with the provisions of this Act.

(3) The employees of the PIMS who on or after commencement of this Act but before commencement of the Shaheed Zulfiqar Ali Bhutto Medical University, Islamabad (Amendment) Act, 2018—

- (a) did not exercise any option shall continue to be governed by the Civil Servants Act, 1973 (LXXI of 1973) and the rules made thereunder; and
- (b) had exercised the option to become employees of the University may, within sixty days of the commencement of the Shaheed Zulfiqar Ali Bhutto Medical University, Islamabad (Amendment) Act, 2018, exercise a one-time irrevocable option either to be governed by the Civil Servants Act, 1973 (LXXI of 1973) and the rules made thereunder or, as the case may be, to continue to be employees of the University.

¹ Subs. by Act, 2018 (III of 2018), s. 6.

(4) Where a person, required to exercise option under clause (b) of sub-section (3), does not exercise the option within the said period, he shall be deemed to have exercised the option to be governed by the Civil Servants Act, 1973(LXXI of 1973) and the rules made thereunder.

(5) The terms and conditions of service of all persons serving in connection with the affairs of any institution, institute or teaching department in any capacity transferred from the University or deemed under sub-section (4) to have exercised the option to be governed by the Civil Servants Act, 1973 (LXXI of 1973) and the rules made thereunder shall be determined in the prescribed manner under the Civil Servants Act, 1973 (LXXI of 1973) and the rules made thereunder.

(6) The terms and conditions of the employees determined under sub-section (5) shall not be less favourable than those admissible to them immediately before exercising the irrevocable option or deemed under sub-section (4) to have exercised the option.

(7) Any question arising under sub-sections (3) to (6) of this section and sub-section (1) of section 34 shall be referred to an anomalies committee to be constituted by the Prime Minister for a period of one year.

(8) No person who stands transferred to the PIMS by virtue of sub-section (3) or deemed to have exercised the option as provided for in sub-section (4) shall, notwithstanding anything contained in any law, or any other instrument, for the time being in force, be entitled to any compensation because of such transfer.]

CHAPTER IV

AUTHORITIES AND THEIR FUNCTIONS

20. Authorities.—The following shall be the authorities of the University, namely:—

- (a) the Senate
- (b) the Syndicate
- (c) the Academic Council;
- (d) the Board of Faculty;
- (e) the Board of Studies;
- (f) the Selection Board;
- (g) the Advanced Studies and Research Board;
- (h) the Performance Audit and Vigilance Committee;
- (i) the Finance and Planning Committee;

- (j) the Discipline Committee; and
- (k) such other authorities as may be prescribed.

21. Senate.—(l) The Senate shall consist of—

- (a) the Chancellor;
- (b) two members of the Senate of Pakistan including one from ICT, to be nominated by the Chairman Senate of Pakistan;
- (c) two members of the National Assembly of the Pakistan including one from ICT to be nominated by the Speaker of the National Assembly of the Pakistan;
- (d) the Vice Chancellor;
- (e) the Pro-Vice Chancellor;
- (f) the Secretary Capital Administration and Development;
- (g) one representative of Higher Education Commission;
- (h) the Principals of constituent college or institutes;
- (i) the Chairmen of the teaching departments;
- (j) the Registrar;
- (k) the Controller of Examinations;
- (l) the Director or Administrator of University hospitals;
- (m) the Principal of affiliated college;

(2) The Chancellor or in his absence the nominee of the Chancellor shall preside or act as the chairperson of the Senate.

(3) The members of the Senate, other than *ex-officio* members, shall hold office for a period of three years.

(4) The member of the Senate other than the *ex-officio* member may under his hand tender his resignation to the Chancellor.

(5) The Senate shall meet at least twice each year on dates to be fixed by the Vice-Chancellor with the consent of the Chancellor.

(6) The quorum for the meeting of the Senate shall be one-third of the total number of its members, a fraction being counted as one.

22. Powers and functions of the Senate.—The Senate shall be the highest administrative and executive body of the University and shall, subject to the provisions of this Act and the rules, have the powers to discharge the following functions, namely:—

- (a) consider the draft of rules proposed by the Syndicate and deal with them in the manner specified in sub-section (2) of section 30;
- (b) consider and pass resolutions on the annual report, annual statement of accounts and the annual and revised budget estimates submitted by the Syndicate;
- (c) appoint or nominate members to the Syndicate and other authorities in accordance with the provisions of this Act;
- (d) delegate any of its powers to an authority or officer or a committee or sub-committee; and
- (e) perform such other functions as may be prescribed.

23. Visitations.—The Senate may, in accordance with the terms and procedures as may be prescribed, cause an inspection to be made in respect of any matter connected with the University.

24. Syndicate.—(1) The Syndicate shall consist of—

- (a) the Vice-Chancellor (Chairman);
- (b) two member of the Senate of Pakistan including one from ICT, to be nominated by the Chairman Senate of Pakistan;
- (c) two members of the National Assembly of the Pakistan including one from ICT to be nominated by the Speaker of the National Assembly of the Pakistan;
- (d) the Pro-Vice Chancellor;
- (e) the representative of administrative ministry not below the rank of additional secretary;
- (f) one representative of Higher Education Commission;
- (g) the Chairman of the Hospital Management Committee;
- (h) the heads of the constituent and affiliated colleges or institutes;
- (i) two Deans to be nominated by the Senate;

- (j) two faculty members to be nominated by the Vice-Chancellor;
- (k) two nominees of the Chancellor;
- (l) Registrar;
- (m) the Vice-Chancellor, Quaid-e-Azam University, Islamabad;

(2) the members of the Syndicate, other than *ex-officio* members, shall hold office for a period of three years.

(3) the quorum for a meeting of the Syndicate shall be one-third of the total number of its members, a fraction being counted as one.

(4) the Registrar shall act as the Secretary of Syndicate.

25. Powers and functions of Syndicate.—The Syndicate shall be the executive body of the University and shall, subject to the provisions of this Act, the rules and the regulations made thereunder, have the powers to discharge the following functions, namely:—

- (a) take effective measures to raise the standards of medical teaching, research and publication in the light of national priorities;
- (b) administer and manage the property and funds of the University;
- (c) govern and regulate the finances, accounts and investments of the University and for that purpose to appoint such agents as it may think fit subject to any advice tendered by the Finance and the Planning Committee in this behalf;
- (d) prepare the annual report, the annual and revised budget estimates and to advice the Senate thereon, and to re-appropriate funds;
- (e) execute sale, purchase and transfer of movable or immovable property on behalf of the University;
- (f) make, modify, vary, and rescind contracts on behalf of the University;
- (g) cause proper books of accounts to be maintained and kept for all sums of money received and expended in relation to all assets and liabilities of the University;
- (h) invest any money relating unapplied income in any of the securities described in section 20 of the Trusts Act, 1882 (Act II of 1882), in the purchase of immovable property or in such other manner as it may determine, with the like power varying such Investments;
- (i) receive and manage any property transferred, grants, bequests, trusts, gifts, donations, endowments and other contributions made to the University;

- (j) administer any funds placed at the disposal of the University for specified purposes;
- (k) determine the form and the manner of custody and the regulation of use of common seal of the University;
- (l) provide the buildings, libraries, premises, furniture, apparatus, equipment and other required items for carrying out the work of the University;
- (m) establish and maintain hostels or lodgings for the residence of students;
- (n) create or abolish such administrative, research or other posts as may be necessary;
- (o) appoint teachers and other officers on the recommendations of the Selection Board for teaching and other posts equivalent to BPS-19 or above and determine their terms and conditions of appointment including fixation of pay, etc.;
- (p) appoint Professor Emeritus on such terms and conditions as may be prescribed;
- (q) confer honorary degrees in accordance with the conditions as may be prescribed;
- (r) determine the duties of officers, teachers and other employees of the University;
- (s) suspend, punish and remove from service in the manner as may be prescribed such officers, teachers and other employees appointed by the Syndicate;
- (t) submit annual report to the Senate and furnish such information as it may call for;
- (u) appoint or nominate members to the various authorities in accordance with the provisions of this Act;
- (v) propose draft rules for submission to the Senate;
- (w) consider draft regulations under sub-section (1) of section 30, provided that the Syndicate may make regulations at its own initiative or in consultation with the Academic Council;
- (x) recommend a panel of three names of the persons to be appointed as Director or Administrator of an attached hospital; and
- (y) regulate, determine and administer all other matters and perform such other functions as have been assigned to it by this Act, the rules and the regulations made thereunder.

26. Academic Council.—(1) The Academic Council shall consist of:—

- (a) the Vice-Chancellor (Chairman);
- (b) the Pro-Vice Chancellor;
- (c) the Deans;
- (d) the Principals of constituents colleges or institutions;
- (e) the principals or Directors of affiliated colleges or institutes;
- (f) the University Professors including Professors Emeritus;
- (g) the Chairmen of all teaching departments;
- (h) two Associate Professors to be nominated by the Vice-Chancellor; and
- (i) two Assistant Professors to be nominated by the Vice-Chancellor.

(2) The members as may be appointed by nomination shall hold office for three years.

(3) The quorum for a meeting of the Academic Council shall be one-third of the total number of its members, a fraction being counted as one.

27. Functions of the Academic Council.—(1) The Academic Council shall be the academic body of the University and shall, subject to the provisions of this Act and the rules made thereunder, have the powers to discharge the following functions, namely:—

- (a) advise the Syndicate on academic matters;
- (b) regulate the conduct of teaching, research, publication and examinations;
- (c) regulate the admission of students to the courses of studies and examinations in the University;
- (d) regulate the conduct and discipline of the students of the University;
- (e) propose to the Syndicate scheme for the constitution and organization of faculties, teaching departments and Board of Studies;
- (f) consider or formulate proposals for the planning and development of teaching and research in the University;
- (g) make regulations on the recommendation of the Board of Faculty and the Boards of Studies, prescribing the courses of studies, the syllabi and the out-line of tests for all University examinations, provided that if the recommendations

of the Board of Faculty or a Board of Studies are not received by the prescribed date, the Academic Council may, subject to the approval of the Syndicate, continue for the next year the courses of studies already prescribed for an examination;

- (h) recognize the examinations of other universities or examining bodies as equivalent to the corresponding examinations of the University;
- (i) regulate the award or studentships, scholarships, medals and prizes;
- (j) frame regulations for submission to the Syndicate;
- (k) appoint or nominate members to the various authorities in accordance with the provisions of this Act; and
- (l) perform such other functions as may be prescribed.

28. Constitution, functions and powers of the authorities.—The constitution, functions and powers of the authorities for which no specific provision has been made in this Act shall be such as may be prescribed.

29. Appointment of committees by certain authorities.—The Senate, the Syndicate, the Academic Council, and other authorities may, from time to time, appoint such standing, special or advisory committees as it may deem fit and may nominate such persons on there committees as are not members of the authorities appointing the committees.

CHAPTER V

RULES AND REGULATIONS

30. Rules.—(1) The Senate may, subject to the provisions of this Act, make rules for providing certain terms and conditions to regulate all or any of the following matters, namely:—

- (a) the scales of pay and, except matters relating to discipline, other terms and conditions of service of officers, teachers and other employees of the University;
- (b) the constitution of pension, insurance, gratuity, provident fund and benevolent fund for University employees, provided such rules are not repugnant to the general policy of the Federal Government;
- (c) the maintenance of the register of registered graduates;
- (d) the establishment of faculties, institutes, colleges and other academic divisions;
- (e) the power and duties of officers and teachers;
- (f) conditions under which the University may enter into arrangements with other

institutions nationally or internationally or with public bodies for purposes of research and advisory services;

- (g) conditions for appointment of Professors Emeritus and award of honorary degrees; and
- (h) the general scheme of studies including the duration of courses and the number of subjects and papers for examinations.

(2) Every proposal relating to matters specified in sub-section (1) shall be initiated by the Syndicate which shall cause the proposed draft to be laid before the Senate which may either pass with or without modifications as it may deem fit, or may reject it:

Provided that the Syndicate shall not propose such draft as may affect the constitution or powers of any authority of the University, until such authority has been given an opportunity of expressing an opinion in writing upon the proposals contained therein.

31. Regulations.—(1) The Syndicate may, subject to the provisions of this Act and the rules, make regulations for regulating all or any of the following matters, namely:

- (a) courses of study for degrees, diplomas and certificates of the University;
- (b) manner in which the recognized teaching referred to in sub-section (1) of section 7 shall be organized and conducted;
- (c) admission of students to the University;
- (d) conditions under which students shall be admitted to the courses and the examinations of the University and shall become eligible for the award of degrees, diplomas and certificates;
- (e) conduct of examinations;
- (f) fees and other charges to be paid by students for admission to the courses of study and the examinations of the University;
- (g) conduct and discipline of students of the University;
- (h) conditions of residence of the students of the University or the colleges, including the levying of fees for residence, hostels and lodges;
- (i) use of hostels and lodges;
- (j) conditions under which a person should carry an independent research to entitle him to a degree;
- (k) institution of fellowships, scholarships-medals and prizes;

- (l) institution of stipends and free and half-free studentships;
- (m) academic costume;
- (n) use of the library;
- (o) formation of teaching departments and Board of Studies; and
- (p) to lay down all other matters specified by this Act and the rules made thereunder;

(2) Every proposal relating to matters specified in sub-section (1) shall be prepared by the Academic Council and laid before the Syndicate which may approve without modifications or refer back to the Academic Council for re-consideration.

CHAPTER VI

UNIVERSITY FUND

32. Fund.—(1) There shall be established a University fund to which shall be Credited grants received from the Federal and Provincial Governments including an initial grant of fifty million rupees by the Federal Government. All income from fees, donations, trusts, bequests, endowments, contributions and grant in-aid from any source shall be credited to the University fund.

(2) The fund shall be kept in such custody, form and manner as may be determined by the Government.

33. Recovery of dues.—The University or any person generally or especially authorized by it may apply to the Collector for recovery of any sum accrued to it under any bond and the Collector shall thereupon proceed to recover the sum due, as if it were arrears of land revenue.

34. Property and assets.—¹[(1) All movable and immovable assets, funds, rights, privileges, liabilities, obligations, interests, etcetera whatsoever, which before commencement of the Shaheed Zulfiqar Ali Bhutto Medical University, Islamabad (Amendment) Act, 2018 were deemed to be the movable and immovable assets, funds, rights, privileges, liabilities, obligations, etcetera of the University, stand transferred to, owned and possessed by the PIMS and be maintained by the Federal Government or such authority as it may authorize in this behalf:

Provided that such movable and immovable assets, funds, rights, privileges, liabilities, obligations, etcetera in respect of the PIMS shall for the purpose of teaching only be enjoyed by the University till acquisition of such movable and immovable assets, funds, rights, privileges, liabilities, obligations, etcetera by the University from its own funds and resources.]

(2) All future assets movable and immovable including land and funds as may be acquired by the University shall become the property of the University.

¹ Subs. by Act, 2018 (III of 2018), s.7.

35. Audit and accounts.—(1) The accounts of the University shall be maintained in such form and manner as maybe laid down by the Federal Government.

(2) The audit of accounts, stores and stocks of the University shall be conducted by the authority or agency as may be determined by the Federal Government.

(3) The annual statement of the accounts of the University signed by the Treasurer and the Auditor shall be submitted to the Federal Government within six months of closing of the financial year.

(4) The observations of the Auditor or auditing agency, together with such annotations as the Treasurer may make, shall be presented to the Syndicate.

CHAPTER VII

GENERAL PROVISIONS

36. Retirement.—An officer, other than the Vice-Chancellor, teacher or other employee of the University shall have the right to retire from service on such date, after he has completed twenty-five years of service qualifying for pension or other retirement benefits as the competent authority may, in the public interest, direct or where no direction is given, on the completion of sixtieth year of his age.

Explanation.— In this section “competent authority” means the appointing authority or a person duly authorized by the appointing authority in that behalf, not being a person lower in rank to the officer, teacher, or other employee concerned.

37. Pension etc.—(1) The University shall constitute for the benefit of its officers, teachers and other employees, in such manner and subject to such conditions as may be prescribed, such pension, insurance, gratuity, provident fund and benevolent fund schemes as it may deem fit, provided these are not repugnant to the general policy of the Federal Government.

(2) Where any provident fund is constituted under this Act, the provisions of the Provident Fund Act, 1925 (XIX of 1925), shall apply as if it were the Federal Government Provident Fund.

38. Filling of casual vacancies in authorities.—(1) Any causal vacancy among the appointed or nominated members of any authority shall be filled within three months and may be made by the person or persons, or the body who appointed or nominated the member whose place has become vacant.

(2) Any member so appointed or nominated under sub-section (1) shall continue to be a member of such authority for the unexpired term for which the person whose place he fills would have been a member.

39. Dispute about membership of authorities.—Every question or dispute as to whether any person is entitled to be a member of any authority, or otherwise, shall be referred to a committee constituted by the Senate.

40. Proceeding of authorities not invalidated by vacancies.—No act, proceeding, resolution or decision of any authority shall be invalid by reason of any vacancy therein or invalidity of appointment or nomination of any *de-facto* member of the authority.

41. Amendment of schedule.—The Federal Government may, by notification in the official Gazette, amend the schedule.

42. Removal of difficulties.—If any difficulty arises in giving effect to any provisions of this Act, the Chancellor may, on the recommendation of the Vice-Chancellor through syndicate, issue such orders or directions as may not be inconsistent therewith for removing such difficulty:

Provided that no order shall be passed under this section after eighteen months of the commencement of this Act.

SCHEDULE

[see-section 2 (g)]

1. Faculties.—The University shall have the following faculties, namely:—

- (a) Medicine and allied disciplines;
- (b) Surgery and allied disciplines;
- (c) Dentistry and allied disciplines;
- (d) Basic Medical Sciences (non-clinical sciences)
- (e) Nursing and allied Health Sciences.

2. Board of Faculty.—(1) There shall be a Board of Faculty for each department which shall consist of —

- (a) the Dean;
- (b) the Chairman and all Professors of the faculty;
- (c) one Associate Professor and one Assistant Professor to be appointed by rotation in order of seniority from each teaching department constituted in the faculty; and
- (d) three teachers to be nominated by the Vice-Chancellor by reason of their specialized knowledge of the subjects which, though not assigned to the faculty, have in the opinion of Vice-Chancellor, important bearing on the subjects assigned to the faculty.

(2) The members mentioned in clauses (c) and (d) of sub-paragraph (1) shall hold office for two years.

(3) The quorum for a meeting of the Board of Faculty shall be one-third of the total number of members, fraction being counted as one;

(4) The functions of the Board of Faculty shall, subject to the general control of the Academic Council and the Syndicate;—

- (a) to co-ordinate the teaching, publication and research work in the subjects assigned to the faculty;
- (b) to scrutinize the recommendations of the Board of Studies comprised in the faculty;
- (c) to consider any other academic matter relating to the faculty and to report thereon to the Academic Council; and
- (d) to perform such other functions as may be assigned by the Academic Council or the Syndicate.

3. Dean.—(1) There shall be a Dean of each faculty, who shall be the Chairman and Convener of the Board of Faculty.

(2) The Dean shall be appointed by the Syndicate from amongst Professors in the faculty.

(3) The Dean shall hold office for three years.

(4) The Dean shall ensure proper enforcement and implementation of the rules and regulations relating to various departments.

(5) The Dean shall coordinate the work of the Board of Studies and the Advanced Studies and Research Board in various departments.

(6) The Dean shall advise the Vice-Chancellor on matters related to teaching, research, academic programs, extension and other developmental projects.

(7) The Dean shall perform such other duties and exercise such administrative and academic powers as may be delegated to him.

(8) The Dean shall be responsible for quality assurance of the courses run under its Faculty.

4. Teaching department, etc.—(1) There shall be a teaching department or institute for each subject or a group of subjects, as may be provided under the regulations, and each teaching department or institute shall be headed by a Chairman or the Director, as the case may be.

(2) The Chairman or the Director shall be appointed by the Syndicate for a term of two years

from amongst the first three senior most teachers in the department or institute, as the case may be.

(3) The Chairman or the Director, as the case may be, shall plan, organize and supervise the work of the department or institute and shall be responsible to the Dean for the work of his department or institute.

5. Board of Studies. —(1) There shall be a separate Board of Studies for each faculty.

(2) Each Board of Studies shall consist of —

- (a) the Dean of Faculty;
- (b) all Professors and Associate Professors of the faculty;
- (c) one teacher other than the Professor or Associate Professor to be appointed by the Vice-Chancellor;
- (d) three teachers other than University teachers to be appointed by the Academic Council; and
- (e) one expert to be appointed by the Vice-Chancellor.

(3) The term of office of members of the Board of Studies, other than *ex-officio* members, shall be three years.

(4) The quorum for meetings of the Board of Studies shall be one-third of the total number of members, a fraction being counted as one.

(5) The Dean of Faculty shall be the Chairman and Convener of the Board of Studies.

6. Functions of Board of Studies. —The functions of the Board of Studies shall be to—

- (a) Advise the authorities on all academic matters connected with instruction, publication, research and examination in the subject or subjects concerned;
- (b) propose curricula and syllabi for all degree, diploma and certificate courses in the subject or subjects concerned;
- (c) suggest a panel of experts for setting examination papers and examiners in the subject or subjects concerned; and
- (d) perform such other functions as may be specified in the regulations.

7. Advanced Studies and Research Board.—(1)The Advanced Studies and Research Board shall consist of the following members, namely:—

- (a) the Vice-Chancellor (Chairman);

- (b) the Deans;
- (c) three Professors other than Deans to be appointed by the Syndicate;
- (d) three teachers having research qualifications and experience to be appointed by the Academic Council; and
- (e) three teachers from colleges having research qualifications to be appointed by the Academic Council.

(2) The term of office of members of the Advanced Studies and Research Board, other than *ex-officio* members, shall be three years.

(3) The quorum for a meeting of the Advanced Studies and Research Board shall be one-third of the total number of members, a fraction being counted as one.

8. Functions of Advanced Studies and Research Board.—The functions of the Advanced Studies and Research Board shall be to—

- (a) advise the authorities on all matters connected with the promotion of advanced studies and research in the University;
- (b) consider and report to the authorities on the institution of research degrees in the University;
- (c) propose regulations regarding the award of research degrees;
- (d) appoint supervisors for research studies and to determine the subjects of their thesis;
- (e) recommend panels of names of experts for setting examination papers and examiners for research and examinations after considering the proposals of the Board of Studies in this behalf; and
- (f) perform such other functions as may be specified in the regulations.

9. Selection Board.—(1) The Selection Board shall consist of—

- (a) The Vice-Chancellor (Chairman);
- (b) The Registrar;
- (c) The Chairman Board of Studies;
- (d) The Dean concerned;

- (e) one member of the Senate to be nominated by the Chancellor;
- (f) Pro-Vice-Chancellor;

(2) The term of office of members of the Selection Board, other than *ex-officio* members, shall be three years.

(3) The quorum of the Selection Board shall be one-third of total number of members:

Provided that no member who is a candidate for the post to which appointment is to be made shall take part in the proceedings of the Board.

10. Functions of the Selection Board.—The Selection Board shall consider the applications received in response to advertisement for the posts in BPS 17 and above and recommend the names of suitable candidates for appointment to teaching or other posts to the Vice-Chancellor in case of appointment to posts in BPS 17 and BPS 18, and to the Syndicate in case of appointment to posts in BPS 19 and above and may also recommend the grant of a higher initial pay in a suitable case for reasons to be recorded.

11. Performance Audit and Vigilance Committee.—The Performance Audit and Vigilance Committee shall consist of—

- (a) the Vice-Chancellor (Chairman);
- (b) the director or administrator of the hospital; and
- (c) the dean of respective faculty;

12. Functions of Performance Audit and Vigilance Committee.—The Performance Audit and Vigilance Committee shall, subject to rules and regulations, perform the following functions, namely: —

- (a) lay down parameters for performance audit and efficiency of the teachers with the approval of the Syndicate;
- (b) recommend to the Syndicate cases of repatriation, promotions including accelerated promotions, grant of special pay, etc., and removal from service of teachers; and
- (c) perform such other functions as may be assigned by the Syndicate.

13. Finance and Planning Committee.—(1) The Finance and Planning Committee shall consist of—

- (a) the Vice-Chancellor (Chairman);
- (b) the representative of Planning Commission not below the rank of a member;

- (c) one member of the Senate to be appointed by the Senate;
- (d) one member of the Syndicate to be appointed by the Syndicate;
- (e) the representative of administrative ministry, not below the rank of an Additional Secretary;
- (f) the representative of Ministry of Finance not below the rank of an Additional Secretary;
- (g) two members of the Academic Council to be appointed by the Academic Council;
- (h) one Professor to be appointed by the Vice-Chancellor;
- (i) one nominee of the Chancellor from amongst the legal profession, philanthropist or social workers;
- (j) the director or administrator of the attached hospitals;
- (k) the Registrar; and
- (l) the Treasurer.

(2) The term of office of the members of the Finance and Planning Committee, other than the *ex-officio* members, shall be three years.

(3) The quorum for a meeting of the Finance and Planning Committee shall be one-third of the total number of its members.

14. Functions of Finance and Planning Committee.—The functions of the Finance and Planning Committee shall be to—

- (a) consider the annual statement of accounts and the annual and revised budget estimates and advise the Syndicate thereon;
- (b) review periodically the financial position of the University;
- (c) advise the Syndicate on all matters relating to planning, development, finances, investments and accounts of the University;
- (d) raise funds; and
- (e) perform such other functions as may be prescribed.

15. Discipline Committee.—(1) The Discipline Committee shall consist of—

- (a) four Faculty members including its Chairman to be nominated by the Vice-Chancellor; and
- (b) the teacher or officer-in-charge of students' affairs by whatever name called who shall be its Secretary.

(2) the term of office of the members of the Discipline Committee, other than *ex-officio* members, shall be two years.

(3) The quorum for a meeting of the Discipline Committee shall be three members including its chairman.

16. Functions of Discipline Committee.—The functions of the Discipline Committee shall be to—

- (a) deal with all inter-institute cases of indiscipline in the University;
- (b) propose regulations to the Academic Council relating to the conduct and discipline of University students;
- (c) recommend to the Vice-Chancellor, the suspension, expulsion or rustication of the student on the basis of inquiry conducted under the rules or the regulations; and
- (d) perform such other functions as may be prescribed.

17. Curriculum Development Committee.—The Curriculum Development Committee shall consist of—

- (a) the Vice-Chancellor (Chairman);
- (b) the Deans; and
- (c) the Chairperson whose curriculum is to be modified.
